

Local Peacebuilding in Nepal.

Should Local Peace Committees be continued?

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Local Peace Committees (LPCs) have been in operation in Nepal as from 2007. They were institutionalized to implement the Comprehensive Peace Accord (CPA) at the local level. They were established as an interim measure and were to be disbanded when a new constitution was ratified. LPCs were an inclusive forum at the local level consisting of political parties, civil society representatives, conflict affected groups, and local government officials (as observers). In pursuing the objectives of the CPA at the local level, they had to promote peace and reconstruction, *i.a.* “by resolving the remnants of conflict at the local level”¹.

The LPCs have been subject to regular reviews by, *i.a.*, the NTTP (Nepal Transition to Peace Initiative)², the Carter Center³ and MoPR (Ministry of Peace and Reconstruction)⁴. The MoPR’s latest review of 2015 is a particularly important document, not only because of its assessment of the role that LPCs have played in Nepal’s peace process, but also because it is forward looking and asking the question whether LPCs, in some form or another, should exist beyond the first local elections under the new constitution. In terms of the Terms of Reference (ToR) that established the LPCs, they were seen as interim bodies that would be phased out once legitimate new local government structures were in place. Opinions whether LPCs should continue or not, however, are clearly divided.

The objective with this article is to inform the debate on the future of LPCs. It relies primarily on the above reports, and on available case studies of individual LPCs. Three case studies have been specifically commissioned for this article, namely on the LPCs of Bhaktapur, Jhapa and Dadeldhura (see Addendum 1).

A fairly uniform picture emerged from the various reports and case studies regarding the contribution that LPCs could make, as well as the challenges and the adjustments that would have to be made if they were to continue. The following three questions capture the essence of the discussion that has to take place:

1. Has the local peace process been completed when a democratically elected local government is in place, or is there still a need for an additional body to accept responsibility for peace and reconciliation? Put differently, given the structural conditions for conflict that exist in society, the complex need for reconciliation, and the politicization of society, should politicians (the elected councils) be in charge of the peace and reconciliation project, or should it rather be allocated to a more independent body?
2. Is there need for a local body to assist the Truth and Reconciliation Commission (TRC), and if so, what would be the specific role and responsibilities of such a local body?
3. What measures should be taken to ensure that LPCs, if continued, operate with more success than experienced thus far?

¹ Terms of Reference of Local Peace Committees. Government of Nepal, 2009.

² D. Prasain, B. Sapkota and P Visser (2008). An Assessment of Local Peace Committees in Nepal. Kathmandu: NTTP

³ Carter Center (2009). Observations on Local Peace Committees; Carter Center (2011). Local Peace Committee functioning has improved, but overall effectiveness remains unclear.

⁴ MoPR, Peace Fund Secretariat (2015). Final Report on Review and Impact Assessment of Previous and On-Going Support to LPCs and Support to Discussions of Experience and Future Program Directions

In what follows these questions are discussed with reference to the research on LPCs in Nepal as well as experiences elsewhere in the world. The article does not promote a preference in favour of continuing or discontinuing the LPCs, but offers, from a peacebuilding perspective, a number of observations and arguments that may assist the decision-making process. The article does argue, though, that there is a clear need for a continuing focus on local peacebuilding; and that if LPCs were to be the primary instrument in this regard, very specific preconditions to its implementation have to be in place. These include a much stronger political consensus on the objectives with LPCs, much greater clarity on the specific mandate and role of LPCs, and improved levels of support to LPCs.

1. LPCs as a local platform to mediate political and community tensions?

There are, from a peacebuilding perspective, at least two arguments that can be made in favour of continuing LPCs in Nepal. The first argument is that, at the local level, diversity and structural inequality will continue to contribute to social and political tensions. While it can be expected that democratic local government institutions will play an important role in managing these conflicts, the existence of a legitimate mechanism to facilitate dialogue and mediate disputes will add significant value.

Nepal's society is highly diverse with deep structural inequalities imbedded in its social and political culture. While important strides have been made over the past years in transforming this culture⁵, it would be utterly naïve to assume that the transformation process will be completed once the new constitution is implemented. Such transformation processes require generations and are by their nature unstable and contested⁶. What is of significance for this discussion is that most of the tension and violence will be experienced at the local level. Local communities will continue to wrestle with each other, and with the government, as they have been doing over the past years. Some will pursue old conflicts, a few of them even dating back to the time of Prithvi Narayan Shah, the founder of the Shah dynasty⁷. They will seek to assert their dignity where they have been marginalized in the past, and act on perceptions that their rights have not been fully affirmed. They will compete for access to scarce resources testing the new framework that promises equality and fairness. In other words, the local conflicts that have erupted across Nepal over the past decades will most likely continue in spite of the presence of democratically elected local councils⁸.

This scenario for Nepal is certainly not unique. It is a pattern that has been observed in a number of post-agreement countries⁹. For example, in spite of South Africa's highly praised transition to an inclusive multi-party democracy in the 1990s and its excellent constitution, there has been a rising trend of local disputes turning violent. On average more than five violent community protests take place daily, in spite of the presence of elected local government councils¹⁰. At the time of writing (May 2016) the community of Vumani in the northern province of Limpopo was in turmoil. Tensions

⁵ International Crisis Group (2010). Nepal's Political Rites of Passage, Asia Report N°194.

⁶ See John Paul Lederach (1997). *Building Peace: Sustainable Reconciliation in Divided Societies*. Washington DC: USIP; Daron Acemoglu and James A. Robinson (2013). *Why Nations Fail. The Origins of Power, Prosperity and Poverty*. London: Profile.

⁷ Martin Gaenszle (2002). Contesting the 'Great' Traditions: Remaking the Kiranti Past, in Axel Harneit-Sievers. *A Place in the World. New Local Historiographies from Africa and South Asia*. Leiden: Brill, pp. 331-346.

⁸ See V R Raghavan (ed.) (2011). *Internal Conflicts in Nepal: Transnational Consequences*. Chennai: Centre for Security Analysis; Sebastian van Baalen, 2015. "'So the killings continued.' Wartime Mobilisation and Post-war Violence in KwaZulu-Natal, South Africa". Uppsala: Master Thesis in Peace and Conflict Studies.

⁹ Chetan Kumar, 2011. "Building national 'infrastructures for peace': UN assistance for internally negotiated solutions to violent conflict", in Susan A. Nan, Zachariah C. Mampilly, and Andrea Bartoli (eds) *Peacemaking: from practice to theory*, Santa Barbara, CA: Praeger; Andries Odendaal, 2013. *A crucial link. Local Peace Committees and National Peacebuilding*. Washington DC: USIP; Severine Autessere 2010. *The trouble with the Congo: Local violence and the failure of international peacebuilding*. Cambridge: Cambridge University Press.

¹⁰ Andries Odendaal (2016). South Africa's Incomplete Peace, in Oliver P. Richmond, Sandra Pogodda and Jasmin Ramović (eds). *The Palgrave Handbook of Disciplinary and Regional Approaches to Peace*. New York: Palgrave Macmillan.

between two ethnic groups have resulted in 24 school buildings being destroyed by arson. The spark that ignited the conflict was the manner in which district boundaries were demarcated, placing one ethnic group under the “rule” of another. State institutions have thus far been unable to contain the situation. The police have been struggling to restore order, while a court decision ratifying the demarcation contributed to the anger. Local government was also ineffective because its composition was the very issue that was contested. This is but one example of a complex and intensifying trend of violent local conflicts.

The argument is, therefore, that because of the likelihood of the persistence of localised violence and conflict in Nepal, the existence of a local body that is focused on peacebuilding and reconciliation is necessary. This body should not be seen as in competition with other state institutions or usurping the authority of the local council. It is a mechanism that is complementary to democratic institutions. Whereas state institutions rely on formal authority and coercive powers, the LPC relies on ‘soft’ processes of dialogue, consensus building and mediation to achieve its goals. LPCs can also not enforce peace. What LPCs offer is a platform for dialogue where difficult discussions can take place, not only when conflicts are exploding, but on a longer-term basis. It also offers mediation. Importantly, LPCs also have the ability to identify all the relevant resources within a community that may contribute positively to processes of conflict transformation, and may play a role in facilitating constructive collaboration. LPCs therefore offers an approach to conflict that complements the legalor governance-based approaches of state institutions and does not compete with or contradict such approaches.

The second argument for continuing LPCs in Nepal relates to the politicization of Nepalese society. Political parties have, over the past two decades, entrenched their position in society as dominant patronage systems. Access to state resources, in other words, is facilitated mostly informally through party membership. The ICG report of 2010 has referred to “... the vast networks of patronage and loyalty with which the parties encircle the state...”¹¹. It means, in reality, that at the local level the stakes for political parties are extremely high and competition is fierce. It has to be recognised that, at the local level, local leaders of political parties have been able, despite the absence of an elected council, to negotiate agreements amongst themselves relating to issues of importance to the district, including the district budget. While this ability to reach compromises is impressive, it has at the same time been criticised for serving the narrow interests of the local elite to the detriment of the larger society¹².

The argument, therefore, is that given the nature of the political culture in Nepal, there is a real danger that the larger objectives of reconciliation and peacebuilding will be lost. It therefore makes sense to establish a body that will represent these specific objectives. The LPCs will have to accept responsibility for the larger task of peacebuilding and reconciliation in the district, using the approaches and strategies as mentioned above. In other words, they do not compete with political parties for power, but are positioned as facilitators with a standing mandate to call all relevant parties, organisations or individuals to the table for dialogue and consensus-building on issues that affect the quality of peace in the district.

The argument for LPCs furthermore states that the strategy of formalizing local peacebuilding into structures such as LPCs has specific advantages in comparison to non-formalised approaches. By non-formalised approaches is meant civil society-based organisations or NGOs. The formality of

¹¹ ICG (2010).

¹² Carter Center (2010). Brief Overview of Political Dispute Resolution at the Local Level in Nepal, p.3.

LPCs' mandate means that state institutions cannot ignore their interventions. They have to take note and cooperate. The same applies to political parties. LPCs therefore have considerable clout to call parties to a table, something that civil society organisations do not necessarily have. Formalised LPCs are also more sustainable than NGOs, and its formal nature means that it will be implemented in all districts and not only in those where specific NGOs have a presence. Lastly, on a more idealistic level, by formalising LPCs Nepal as a nation acknowledges the importance of local peacebuilding and takes responsibility, as a nation, for this task.

The fact that formal structures have specific advantages is not an argument against the existence and work of NGOs. There is much to do and certainly scope for synergy and collaboration. The argument here is that the formality of LPCs present specific advantages that should also be in the interest of civil society based organisations.

There are, of course, counter-arguments. By formalising LPCs they are set up to be politicised. There is a very real danger of political capture, and the history with LPCs thus far in Nepal shows that this is more than just an empty threat. Much of the disappointment with the performance of LPCs thus far can be related to the undue influence and control of ruling parties over their operations¹³. There is also an inherent danger of the bureaucratization of LPCs. Bureaucratization of LPCs means that instead of being a flexible and dynamic platform for dialogue and consensus building, its focus shifts to rigid rules, structures and proceedings¹⁴. Again, this is indeed what happened to some extent. The main task of LPCs over the past years was to process and register conflict victims for purposes of receiving relief on behalf of MoPR – essentially (but not exclusively) a bureaucratic task¹⁵. This task clearly received much more attention than being the forum where the community met to discuss their future and their peace.

Another argument against LPCs is that the most important peacebuilding task is 'statebuilding'¹⁶. In terms of this view, all efforts should be focused on making local governments work as they should. To introduce new and untested mechanisms will only detract from the main task. Local governments that enjoy sufficient legitimacy and that function well should be able to facilitate processes of dialogue and consensus building without resort to a separate local body. Furthermore, the context at the local level in Nepal is characterized by the absence of adequate resources, both financial and human. It is not in the interest of sound governance to multiply the number of local bodies.

Possibly the strongest argument against continuing with LPCs, however, is that the evidence regarding their success is not encouraging. In Nepal LPCs have thus far been rather dysfunctional¹⁷. In all fairness, though, this dysfunctionality must be seen against the reality that there had been no local councils since 2002. The expectation that LPCs would achieve miracles of order and good sense in a context that was characterised by neglect was unrealistic.

Still, the argument for LPCs at the time was that they offered a mechanism that would mitigate tensions and assist in building consensus around peacebuilding objectives. In this respect the results were not quite convincing. The reasons for the disappointment with LPCs are complex, but largely related to political dynamics and specific inadequacies in the design and implementation of the LPCs¹⁸. The case studies and reports all voiced the same concerns: there was a lack of clarity on the

¹³See Andries Odendaal (forthcoming). Local Peace Committees in Nepal. Reflections on local peacebuilding in a context of political obduracy. NTTP.

¹⁴ John Paul Lederach (2012). The origins and evolution of infrastructures for peace: a personal reflection. *Journal of Peacebuilding and Development*, Vol. 7, No. 3.

¹⁵Odendaal (forthcoming).

¹⁶ World Bank (2011). Conflict, Security, and Development, in *World Development Report 2011*. Washington DC: World Bank.

¹⁷ CC 2011:3

¹⁸ Odendaal (forthcoming).

role of LPCs; insufficient administrative and financial support from MoPR; too much political competition for the position of coordinator; too much political interference in the task of LPCs (eg. by allegedly ensuring that party cadres were favoured when victim relief was allocated); too much political instability at the national level resulting in frequent changes to the staff of LPCs; and the allegation that the appointment of LPC staff took place on the basis of party loyalty and not their competence.

Two reasons for the weak performance of the LPCs, however, stand out. First, there was no inclusive national body that could act as a parent body for LPCs, safeguarding their legitimacy and collaborating with LPCs in solving specific problems. The assumption was that LPCs would report to an inclusive and independent High Level Peace Commission. This commission was not established, nor did any subsequent effort to establish such a representative body come off the ground. The result was that the LPCs reported to MoPR and, implicitly, to the Minister and the political party in power. This situation did much damage to the legitimacy of LPCs. Second, the ToR of LPCs envisaged that a panel of expert facilitators would be established at the national level to assist in the formation of LPCs, as well as their functioning. These facilitators would have assisted LPCs in analysing their context and determining priorities, in providing advice on appropriate strategies to follow, in assisting with difficult facilitation or mediation tasks, and in helping the LPCs to learn continuously and improve on their performance. This panel of facilitators was never established. As a result, LPCs were largely left to pull themselves up by their own bootstraps.

On the other hand, though, a number of LPCs have been successful in spite of all the hindrances mentioned above. For example, in Kavre the LPC facilitated dialogue between the parties and managed to establish “harmony within inter-party politics”¹⁹. The MoPR report mentioned the ability of LPCs “to mitigate political rift and promote the peace process”²⁰, based on examples from LPCs in Morang, Chitwan and Dang. In Jhapa the LPC managed to defuse a crisis caused by one political party’s demands to have an ethnic state, while in Dadeldhura the LPC managed to get parties in conflict to collaborate in its activities (see Appendix 1). The case studies further report that specific conflicts with violence potential have been defused through mediation in Jhapa, Dadeldhura, Bhaktipur, Chitwan, Morang and Panthar. These are anecdotal examples, but enough to suggest that, with sufficient correction of the deficiencies in the system, the overall results could have been better.

The evidence coming from other countries where LPCs have been institutionalized²¹ is unfortunately too sparse to provide convincing support to either side of the argument. Success stories are largely anecdotal and no reliable overall assessment has yet been conducted. The thrust of much that has been written about LPCs is a confirmation of their attraction in theory, but also an acknowledgement of their fragility in a context of fierce political competition or instability²². For example, Petkovski’s²³ research findings on LPCs in Macedonia (called Committees on Inter-Ethnic Relations) are negative. These committees were established to advise municipal councils on issues of inter-ethnic relations, and to mediate in conflicts that involved these communities. He found that they were largely ineffectual, but blamed the manner in which political parties influenced appointments to these bodies for this situation. By seeking to control the committees, political parties effectively rendered

¹⁹ Adhik Badal (2013). The Potential for and Challenges of a Local Peace Committee (LPC): A Study of the District Level Peace Forum in Kavre, Nepal. <http://www.beyondintractability.org/casestudy/badal-lpc>

²⁰ MoPR (2015):vi

²¹ See Kumar (2011).

²² Christopher R. Mitchell and Landon E. Hancock (eds). (2012). *Local Peacebuilding and National Peace. Interaction between Grassroots and Elite Processes*. London: Continuum/Oxford (2013)

²³ Aleksandar Petkovski (2014). The Effects of the Work of Committee and Commissions on Interethnic Relations in Republic of Macedonia. *ACTA UNIVERSITATIS DANUBIUS*, Vol. 6, no. 1.

them useless. Petkovski concluded that the members of the committees should be independent rather than being political appointees. In other words, he did not find against the relevance of LPCs, but in favour of measures to correct the negative influence that political interference had on these bodies.

In summary, LPCs have, in theory, much to offer. There is a valid, though contested, argument that it is necessary to institutionalise such bodies in highly unequal and diverse communities regardless of the fact that legitimate democratic councils are in place. In reality, though, their efficiency cannot be taken for granted and very specific conditions and arrangements will have to be in place to ensure their success. In absence of the latter, it is certainly better to discontinue the LPCs. These specific conditions will be discussed in the last section.

2. A local arm of the TRC?

In light of the fact that the Truth and Reconciliation Commission (TRC) of Nepal has commenced its activities in April 2016, it is appropriate to consider what support LPCs may offer to the TRC in the event that the LPCs will continue to exist. At the moment no specific role is foreseen for LPCs apart from the fact that their offices are used for the registration of complaints.

However, there is a clear overlap between the objectives of the TRC and LPCs. One of the four overall objectives of the TRC is to “... create environment conducive for sustainable peace and reconciliation by enhancing spirit of mutual good faith and tolerance in the society upon bringing about reconciliation”²⁴. The key focus of the TRC is of course to uncover the truth regarding alleged human rights violations that took place during the civil war. It will make recommendations on its findings, ranging from amnesty to prosecution. The TRC may, however, also facilitate reconciliation between perpetrators and victims at the request of either the perpetrator or the victim, or jointly. Following a successful reconciliation process, which will take place within a specific legal framework, the complaint will be “crossed off”²⁵.

The reconciliation that the TRC seeks, in addition to their pursuit of truth and justice, is specifically between perpetrators of atrocities and victims. LPCs, on their part, have been quite active to register, review and certify conflict-affected persons’ applications for relief. They did so at the request of and on behalf of MoPR. Some LPCs went further and offered skills training courses for victims in areas such as bee-keeping, repair of mobile phones, mushroom farming, etc. Furthermore, in a few districts opportunities were created for victims on both sides of the political divide to meet. These discussions have reportedly been able to reduce some of the strong antagonisms that victims had, and were welcomed as very positive interventions. LPCs were also the only local platform that deliberately included representatives of conflict affected persons. While some of these representatives felt that the LPCs did not do enough for them, others were appreciative of LPCs for taking their concerns seriously (see Addendum 1).

It is also noteworthy that in the case studies the need for psycho-social training of LPC members came up quite regularly. LPC members, in other words, felt that they need substantive psycho-social skills in order to address the needs of victim communities.

The question arises, therefore, whether LPCs could play a useful role in relation to the work of the TRC. Is it necessary to formally link the mandates of the two initiatives? In what follows a brief

²⁴ <http://www.trc.gov.np/about-us>

²⁵ The Truth and Reconciliation Commission Rules, 2072 (2016), par. 27, 28. http://trc.gov.np/base/userfile/files/trc_rules_2016.pdf

summary is provided of key insights on the link between TRC initiatives and local peacebuilding processes based on experiences across the world.

From the perspective of local peacebuilding national truth and reconciliation processes present a number of difficult dilemmas. One such dilemma is that a TRC is the product of political compromises at the national level regarding issues of impunity and accountability for war-time behaviour. The national narrative regarding peace and reconciliation, as defined by the political compromise, sets the tone and direction of the TRC process. Local communities often feel let down by this fact. Their specific experiences and their interpretation of events are usurped by and subjected to the national narrative and are not dealt with in terms of their own experiences, histories, perceptions and traumas. Local dynamics, however, play an important role in producing the violence of a civil war²⁶. For reconciliation to take hold, it must have a specific local character.

In Timor Leste, for example, the Commission for Reception, Truth and Reconciliation sent its planning committee to visit the districts to consult on their expectations of the Commission's programme. They were told: "Any reconciliation process should take place at the village level. Participants expressed dissatisfaction that the reconciliation initiatives up to that point had focused on leaders ... It was not realistic to imagine that national leaders could simply command the population to reconcile. A forum was needed where those who had harmed their communities could explain their actions and apologise for them"²⁷. As a result of this input the Timor Leste Commission decided to have a very specific programme of hearings within local communities. Local community members were involved in the planning of the hearing and in the selection of local 'judges' to pronounce on the findings of the hearing. Remorseful perpetrators of acts of violence had to apologise publicly and were required to demonstrate their remorse through community service. This was regarded as a huge success with 96 percent of respondents to an assessment questionnaire evaluating the experience positively²⁸. This strategy of the Timor Leste Commission to have a specific focus on community healing, however, is up to date still exceptional. It has to be said, though, that local communities in Timor Leste are on the whole culturally homogeneous. It would have been a much more complex exercise if the conflict had pitted distinct identity groups against each other.

A second dilemma that TRC processes pose for local peacebuilding is the complex mixture of restorative and punitive paradigms of justice. The TRC is primarily a legal instrument aimed at addressing the difficult matter of accountability for war-time behaviour. At the same time, however, it seeks reconciliation in the belief that the uncovering and acknowledgement of truth brings healing. This mixture of seeking both justice and reconciliation creates difficult situations on the ground. Local communities, because of the nature of civil war, have been traumatised most. They bore the brunt of the violence and these acts have often been perpetrated by their neighbours. The nature of the trauma is complex. It involves, *i.a.*, a need for both justice and for restoring trust. In close-knit communities the element of trust is specifically important because of high levels of interdependence. If the TRC intervention results in punitive action, or if the amnesty offered by the TRC is not welcomed by a section of the community, it leaves deep rifts in the community and, instead of reconciliation, may result in deeper resentment and distrust. A TRC intervention may contribute to a sense of justice for some, but may in the process undermine the restoration of trust.

This dilemma creates notoriously difficult practical challenges. The so-called *gacaca* courts of Rwanda demonstrated the danger of engaging divided communities in procedures that resulted in

²⁶Stathis Kalyvas (2006). *The Logic of Violence in Civil War*. Cambridge: Cambridge University Press; Eric Stover and Harvey Weinstein (eds). (2004). *My Neighbor, My Enemy. Justice and Community in the Aftermath of Mass Atrocity*. Cambridge: Cambridge University Press

²⁷ Commission for Reception, Truth and Reconciliation (2006). Final Report. Timor Leste, ch. 9, par 26.

²⁸See Odendaal (2013), p.106-109.

punitive justice. Following the genocide of 1994 and the decision that there should be no impunity for the atrocities committed, these courts were established to deal with cases that did not involve serious offenders. The *gacaca* were traditional courts that dealt with civil disputes through informal processes aimed at restoring peace and harmony. The adapted version of the *gacaca*, though, involved selected local community persons as judges that had to operate within a specific legal framework and with the power to impose prison sentences or fines. It was therefore a fusion of restorative justice with punitive justice, but the latter came to dominate²⁹. The genocide against the Tutsi minority was driven by Hutu militants. The terms of reference of the *gacaca* courts was written by the RPF government, being the movement of the exiled Tutsi whose army effectively stopped the genocide. At community level, therefore, community members, who were compelled by law to attend hearings, had to participate and witness punitive justice being exercised on neighbours by fellow neighbours in a context where little reconciliation had yet taken place. Add to this mixture the perceptions that the government used these courts to punish those who criticised the post-genocide government³⁰, and that it created opportunities for individuals to take personal revenge on enemies and eliminate rivals³¹. A serious concern exists that, instead of an instrument of healing, the *gacaca* courts may in reality have created just another layer of memory of humiliation in the collective psyche of the Hutu that may be acted out in future behaviour.

For the purpose of this discussion, the implication is that LPCs should preferably not be directly involved in TRC processes at the local level, but should be ready to deal with the outcome of these hearings. LPCs must assume that the TRC findings may not necessarily bring reconciliation or a restoration of trust. They should continue with longer-term processes to work towards this end.

A last dilemma, linked to the above, concerns the once-off nature of TRC procedures. The assumption behind much of the TRC approach is that once the truth has been uncovered and acknowledged by perpetrators, reconciliation has been achieved. Reconciliation, however, is a much more complex and lengthy process. There are many layers to “the truth”. What is uncovered through a formal hearing is but one such layer, while the process of healing requires exposure to the multi-faceted nature of the truth³². Furthermore, a once-off incident of truth-telling is important, but if it is not anchored in a virtuous spiral of improving relationships, its relevance to reconciliation may soon diminish. One of the criticisms levelled against South Africa’s TRC was its once-off nature. It was a highly publicised process whereby the Commission travelled across the country to listen to the harrowing stories of victims. It was, at the time, praised for the manner in which these hearings restored some of the dignity of the victims, but today the perception is growing that the failure to sustain its interventions and the fact that so little of its recommendations were implemented, have dented the credibility of the process. The Institute for Justice and Reconciliation publish an annual ‘Barometer’ on progress with reconciliation in the country³³. These surveys demonstrate vividly the long-term, complex and tortuous nature of the reconciliation process. The TRC, though very important at the time, was but an event in this process.

The fact is that local communities and individuals determine their own readiness for reconciliation³⁴. It cannot be manipulated or coerced by external or national actors. The time-table for it cannot be

²⁹Max Rettig (2008). *Gacaca: Truth, Justice, and Reconciliation in Postconflict Rwanda?* *African Studies Review* Vol. 51, No. 3, p. 25-50.

³⁰Human Rights Watch (2011). *World Report 2011*. Rwanda. www.hrw.org/.

³¹Timothy Longman (2009). An Assessment of Rwanda’s *Gacaca* Courts. *Peace Review: A Journal of Social Justice* Vol. 21, No. 3, p.310.

³²For an in-depth discussion of the multifaceted nature of the statement of one rural woman before South Africa’s TRC, and her complex road to healing, see A. Krog, N. Mpolweni and K. Ratele (2009). *There was this goat. Investigating the Truth Commission Testimony of Notrose Nabumvu Konile*. Scottsville: University of KwaZulu-Natal Press.

³³See <http://www.ijr.org.za/political-analysis-SARB.php>

³⁴Stover and Weinstein (eds). (2004), p.324.

prescribed. Local communities also determine their own strategies to deal with this matter, relying on what they feel comfortable with. The role of external actors and service organisations is to be available when assistance is required; and to provide encouragement and support. The ideal role of LPCs in traumatised communities is to be available as a platform or a “safe space” where difficult encounters can take place not only once, but as and when needed.

In summary, the TRC process is very important for reconciliation, but is not sufficient. Reconciliation at the local level is a long-term process that moves through complex and at times very shaky episodes. Local communities, who have experienced the bulk of the trauma of civil war, deserve support if and when needed, and LPCs may be able to provide support. This support consists of the potential LPCs have to engage relevant individuals and groups in dialogue and to facilitate longer-term processes aimed at healing the wounds. It would require, though, the transformation of the composition of LPCs and their mandate.

3. Essential preconditions for continuing with LPCs

Based on the discussion above and elsewhere³⁵, the following five issues need to be considered when deciding on the continuation or not of the LPCs. There are of course other issues that will also need attention regarding practical arrangements, but these five issues are at the heart of the matter.

(i) Objectives and mandate

The overall objective with LPCs is to ensure the optimum level of collaboration between local government, political parties, identity groups, and civil society organisations in the district in order to achieve and deepen the quality of reconciliation and peace in that district.

To achieve this objective, LPCs will rely primarily on a continuous analysis of relationships in the district, identify areas of ongoing and debilitating tension, and initiate processes of dialogue, reconciliation or mediation when deemed appropriate. In this task the LPC should also identify the available resources in a district, including civil society based peacebuilding institutions, and seek optimum collaboration.

The mandate of the LPCs therefore does not include any authority regarding issues of governance. It cannot make binding orders. But it has the authority to interact with government institutions, political parties and civil society organisations, and to call on their collaboration and assistance in pursuing the objectives of the LPC.

Their focus should be on the overall peace and reconciliation process in the district, and their interventions should be guided by this focus. In other words, they do not have the mandate or responsibility for conflicts and tensions not deemed of relevance to the overall wellbeing of the district.

(ii) Political will:

One lesson regarding LPCs that has emerged quite clearly is that the political context is decisive. It is the political context that will determine whether continuing with LPCs is a viable option or not. If there is not sufficient political will across the political spectrum to create the necessary space for LPCs to do their work, it is best not to go that route. What it means in practice is that political parties will have to support the presence of an independent body at the local level with the mandate to facilitate dialogue and to mediate

³⁵ See Odendaal (forthcoming)

in situations of debilitating local conflicts. It further means that political parties should desist from attempts to influence appointments to the LPCs or to exercise control of body.

(iii) *Accountability to a national body*

LPCs should not report to a line ministry. This matter has done LPCs a lot of harm in the past because of the manner in which it exposed them to party-political control and manipulation. The ideal is that national oversight of LPCs should be exercised by an independent and inclusive national body of individuals appointed for their integrity and credibility. An option could be to establish such a body under the auspices of the President of the Federal Republic or the Speaker of Parliament, or otherwise as a completely independent commission with financial, but not political accountability to a line ministry such as MoPR.

The importance of a national counterpart to LPCs is not only to prevent political capture of LPCs. There is a deeper rationale for its establishment. A national parent body provides critical support to LPCs in three ways. First, it symbolizes and represents the national vision for a peaceful and stable Nepal and removes this vision one small step away from the party-political arena. The fact that the mandate for LPCs derives from such a body means that its credibility at the local level is enhanced and safeguarded.

Second, a national body provides active leadership and support to LPCs on specific issues that they are struggling with. It is true that a main objective with LPCs is to promote local ownership of the peace and reconciliation process at the local level. However, local conflicts are never unaffected by the national context - on the contrary. A key insight regarding local conflict resolution that has been highlighted by recent research is that it is necessary to understand the *interaction* between local and national conditions and actors. The national context inevitably has a strong impact on local conditions, but at the same time local actors and conditions determine the manner in which local communities respond to national conditions. The patterns of violence during civil war, that much we know, are co-determined by national and local dynamics. Similarly, there must be interaction and collaboration between local and national actors in anchoring peace in the districts. A national counterpart of LPCs has to facilitate this necessary interaction between national and local levels in order to solve specific local issues. Local communities should never have the impression that they are all on their own in their struggles to deal with their situation.

Third, the national body provides a platform where the voices from the districts can be heard. It is important that Kathmandu listens with more respect and attention to the real experiences of local communities in their struggles to build peace. The national body should provide such an ear and should make sure that these voices are heard in national discussions that matter.

(iv) *An adequate support system for LPCs*

There is in many circles a serious underestimation not only of the complexity of the task to facilitate dialogue or to mediate, but more particularly to do so in rural communities. The expectation that you could assemble a group of people in a district, tell them to go forth and facilitate conflict resolution or reconciliation, and that they will know what and how to do it, is naïve. Some people do have an innate capacity for this role; it comes naturally. Yet, as in

all other complex undertakings, it will immensely improve the prospects of success if it can take place on the basis of sufficient support regarding the knowledge and skills needed.

The proposal at the time when LPCs were established, was to establish a panel of expert facilitators to support LPCs. The proposal was not that these facilitators should manage LPCs, but that they should offer support at request and as appropriate. The fact that this proposal was never implemented detracted considerably from the impact that LPCs could have had.

It is not advised that LPCs should continue in the absence of such a support structure.

(v) *Composition of the LPC*

With a new constitution and democratically elected local governments in place, the need for a forum that is representative of the spectrum of parties and community groups in a district no longer exists. What is needed is a small group of persons that are willing to take on the mandate of LPCs. This group can be as small as 3-5 persons. Two main criteria should guide the selection of this group of people. First, that they consist of individuals who command respect for their personal integrity and fairness across the political spectrum and the range of identity groups in the district. They must be individuals, in other words, to whom the people of the district will entrust the responsibility for reconciliation and peacebuilding. The second of the criteria is that, as a group, they should reflect some of the diversity of the district. It would not be acceptable if all LPC members came from the same identity group, caste or gender.

Conclusion

There is a clear need for concerted local peacebuilding in Nepal. The democratic election of local councils on the basis of a new constitution will certainly mean that a very important step forward has been taken, but it does not mean that the need for a specific focus on local reconciliation and peacebuilding has now lapsed.

The question whether LPCs present the best strategy to go forward cannot be answered conclusively. If the conditions for implementing LPCs as mentioned above are in place, a strong argument for continuing with them can indeed be made. If, however, insufficient attention is given to these preconditions, it would be best to discontinue the LPCs.

APPENDIX 1

Case studies: LPCs in Bhaktapur, Jhapa and Dadeldhura.